

Robert Perez, et al. v. Jaax Concrete, Inc., et al., 25CV-0528

**Hearing: (1) Jaax Concrete, Inc.’s Motion to Compel Discovery Responses, and for Monetary Sanctions
(2) Jaax Concrete, Inc.’s Motion for Order Deeming Admitted Truth of Facts and for Monetary Sanctions**

Date: September 24, 2026

TENTATIVE RULING

On August 14, 2025, Robert and Mardell Perez, individually and as trustees of The Robert Perez and Mardell Perez Revocable Family Trust dated June 5, 2025 (Plaintiffs) filed a complaint against Jaax Concrete, Inc. (Jaax), Holliday Rock Co., Inc. (Holliday), Gifford Matt Painting, LLC, dba MGP Coating, and North River Insurance, Inc. The dispute arises from agreements to perform work on Plaintiffs’ residence and to supply materials.

On May 5, 2026, Jaax propounded on Holliday: (1) Form Interrogatories; (2) Special Interrogatories; (3) Request for Production of Documents; and (4) Requests for Admissions. (Zang Decs., ¶ 8.)

Now before the Court are Jaax’s motion to compel discovery responses, and motion for an order deeming admitted the truth of facts and for sanctions against Holliday and its counsel. Holliday has not filed an opposition. The motions will be granted in part.

These matters initially came on for hearing on August 20, 2026. The Court continued the matters to September 24, 2026 because Jaax failed to file proof of service that a notice containing the date and time of the hearing was served. Holliday appeared at the August 20, 2026, hearing. The Court ordered Holliday to serve notice of the continued hearing. (8/20/26, Minutes.) On August 20, 2026, Holliday filed a notice of continuance reflecting that notice was provided to the parties on that date via email.

Holliday’s discovery responses were due after an extension to June 27, 2026. (Zang Decs., ¶¶ 9, Ex. 6, 4.) On July 7, 2026, Jaax’s counsel emailed Holliday’s counsel to follow up and requested verified, code-compliant responses, without objections, along with responsive documents by July 10, 2026. (Zang Decs., ¶¶ 10, Ex. 7, 5.) Holliday did not respond to the email, and no discovery responses have been served. (*Ibid.*)

All that need be shown for purposes of a motion to compel initial responses is that the discovery was properly served; that the time to respond has expired; and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1140; Code Civ. Proc., §§ 2030.290, subd. (b) [interrogatories], 2031.300, subd. (b) [demand for inspection].) Plaintiff has made that showing here. The Court intends to grant the

motion to compel discovery, unless Holliday serves the required responses by the date of the hearing.

With respect to a motion under Code of Civil Procedure section 2033.280 subdivision (b) for an order deeming the requests for admission admitted, “[t]he court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).) Absent confirmation that substantially compliant responses have been served prior to the hearing, the motion to deem the requests for admission admitted, will be granted.

Jaax seeks monetary sanctions of \$2,056.00 against Holliday and its counsel in connection with these motions. Jaax’s request is supported by declarations from its counsel, Lu Zang. The declarations state that Attorney Zang’s hourly rate is \$185.00. Jaax seeks a total of \$2,056.00 in monetary sanctions, comprised of \$1,110.00 for preparing the two motions, \$370.00 for preparing the replies, \$370.00 to attend the hearing, \$120.00 in filing fees, and \$86.00 for the Court Call fee. The Court awards a reduced amount because no opposition or reply papers were filed. The Court therefore disallows the \$370.00 sought for reply preparation and limits hearing attendance to one hour total for both motions (\$185.00), rather than \$370.00. As reduced, the award is \$1,501.00.